

Bela Devi vs Rajiv Thakur on 1 August, 2025

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(2025:HHC:25766)

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA

CMPMO No.694 of 2024

Date of Decision : 01.08.2025

Bela Devi

..... Petitioner

Versus

Rajiv Thakur
Coram:

.....Respondent

The Hon'ble Mr. Justice Bipin Chander Negi, Judge
Whether approved for reporting?1 No

For the petitioner : Mr. Kunal Thakur, Advocate, vice Mr. Ajay Chauhan, Advocate.

For the respondent : Mr. Bhim Raj Sharma, Advocate, vice Mr. Ram Krishan, Advocate.

Bipin Chander Negi, Judge (oral)

Present petition, in the case at hand, has been filed under Section 24 of the Civil Procedure Code, seeking transfer of the petition filed by the respondent under Section 13(1)(IA)(IB) of the Hindu Marriage Act bearing H.M.A. No.123 of 2024, pending before learned Principal Judge, Family Court, District Bilaspur, Himachal Pradesh to the Court of learned Principal Judge, Family Court,

District Sirmaur at Nahan, Himachal Pradesh.

2. Heard counsel for the parties. Perused the pleadings.

Respondent has no objection, if in case the petition is ordered to be transferred to the Court of learned Principal Judge, Family Court, Solan, District Solan, Himachal Pradesh.

Whether reporters of Local Papers may be allowed to see the judgment?

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3. Marriage inter se the parties was solemnized on 10.04.2016.

Out of the wedlock till date, there is one girl child, i.e., Ankita who is residing .

with the petitioner.

4. Parties to the lis cohabited till October, 2020, when the petitioner, it is alleged was turned out of the matrimonial home by the respondent. Subsequent thereto, she started residing with her parents at village Chauras, Post Office, Devna, Tehsil Nauradhar, District Sirmaur, Himachal Pradesh. The petitioner is a housewife totally dependent for her financial needs on her parents.

5. The respondent has filed a petition under Section 13 of the Hindu Marriage Act 1955 seeking divorce. The same has been filed in the Court of learned Principal Judge, Family Court, Bilaspur, District Bilaspur, Himachal Pradesh.

6. The cardinal principles for dealing with the petition under Section 24 of the Code of Civil Procedure have been clearly enunciated in 2022 SCC OnLine SC 1199 titled as N.C. V. Aishwarya vs. A.S. Saravana Karthik Sha. Relevant extract whereof is reproduced here-in-below:-

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the court have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio-economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer.

10. Further, when two or more proceedings are pending in different Courts between the same parties which raise common question of fact and law, and when the decisions in the cases are interdependent, it is desirable that they should be tried

together by (2025:HHC:25766) the same Judge so as to avoid multiplicity in trial of the same issues and conflict of decisions."

7. Keeping in view the wife's convenience in the case at hand, the .

fact that respondent has no objection, if in case, the present petition is transferred from the Court of learned Principal Judge, Family Court, District Bilaspur, Himachal Pradesh to the Court of learned Principal Judge, Family Court, Solan, District Solan, Himachal Pradesh, economic soundness of both the parties, the circumstances in which the petitioner is eking out her livelihood, it is imperative that the proceedings filed by the respondent under Section 13 of the Hindu Marriage Act bearing H.M.A. No.123 of 2024, pending before learned Principal Judge, Family Court, District Bilaspur, Himachal Pradesh, needs to be transferred to the Court of learned Principal Judge, Family Court, Solan, District Solan, Himachal Pradesh.

8. In view of the aforestated, the present petition is allowed.

Parties are directed to appear before the Court of learned Principal Judge, Family Court, Solan, District Solan, Himachal Pradesh, on 25.08.2025. It be ensured that the petition pending adjudicating before learned Principal Judge, Family Court, District Bilaspur, Himachal Pradesh, is transferred to the Court of learned Principal Judge, Family Court, Solan, District Solan, Himachal Pradesh, forthwith.

In view thereof, the present petition stands disposed of, so also, the pending miscellaneous applications, if any.

8.

August 01, 2025 (KS)

(Bipin Chander Negi)
Judge